

MT 204 Constitution of India

Module 2: Union and State Executive

The Union Legislature- The Parliament

- The Indian Constitution provides for federal structure of Government. India is governed at three levels- one government at the center, another at the state level and the third at the local level(panchayati raj). Accordingly, we have the union government and the state government.
- The body that governs India at the Centre, India's union legislative, is known as Parliament. It is the highest law-making body of the country. It consists of Rajya Sabha (Council of States) and Lok Sabha (House of the People). The members of Lok Sabha and Rajya Sabha are called members of Parliament (MPs).

Lok Sabha

- The Lok Sabha is known as house of the people because its members are directly elected by the people.
- For the purpose, of elections, the country is divided into constituencies. These are created based on population; so, the more populous states have more seats in the Lok Sabha.
- The President nominates two members of the Anglo-Indian community, if it is otherwise not represented in the Lok Sabha.
- The candidate who polls maximum number of votes is declared as the member of parliament from that constituency in the Lok Sabha.

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- All citizens above the age of 18 years can participate in this electoral process. Voting is done by secret ballot.
- The party which gets absolute majority, i.e., more than half of the seats in Parliament, is invited by the president to form the government.
- If no party gets a clear majority, like minded parties, who are willing to negotiate, may form a coalition government.
- Other political parties who oppose the majority party, or coalition, form the opposition.

Term of Lok Sabha & Members' Qualification

- The term of Lok Sabha is for a period of five years. Its term ends after every five years, and fresh elections are held. But it can be dissolved earlier by the president on the advice of the prime minister.
- A person who stands for election to the Lok Sabha-
- Should be an Indian citizen and above the age of 25 years.
- Should not be bankrupt or mentally unstable, and
- Should not hold position of profit.

The Speaker

- The speaker is the presiding officer of Lok Sabha. Usually he/she belongs to the ruling party. The speaker is expected to remain impartial and is the principal spokesperson of the house.
- The speaker-
- Presides over the Lok Sabha
- Maintains discipline in it and certifies money bills
- May cast his/her vote to resolve the deadlock in case of tie of voting
- Allows members to ask questions

Rajya Sabha

- The upper house or Council of States i.e., the Rajya Sabha, can have up to 250 members. This includes 12 members nominated by the President of India. The members nominated are chosen from amongst distinguished personalities in the country like authors, journalists, jurists, scientists, technocrats, social workers, economists, theatre personalities, actors, players etc. It is a permanent body and cannot be dissolved. One third of its members retire every two years. Each member has a term of six years.

Qualification & Presiding Officer of Rajya Sabha

- To be a member of Rajya Sabha, a person:
- Must be an Indian citizen aged 30 years and above.
- Should not be bankrupt and of unsound mind,
- Should not hold any position of profit.
- The vice president of India presides over the Rajya Sabha. The members of Rajya Sabha elect the deputy chairperson from amongst themselves.

Functioning of the Legislature

- It is mandatory that the Parliament should function for at least two sessions in a year. The gap between the two sessions should not exceed a period of six months. It is the president of India who summons and closes each session.
- The most important work of Parliament is to pass bills. The two categories of bills are:
 - Ordinary bill, &
 - Money bill

The Union Executive

- The executive is that part of the government that executes the laws passed by the legislature. The union executive consists of the
- President
- Vice President
- Prime Minister, &
- Council of Ministers (Cabinet Minister, Minister of State & Deputy Minister)

President & its Qualification

- President is the head of state and holds the highest office in the country. The position of the president is mainly that of figurehead. The head of government is the prime minister. The president is bound by the constitution to follow the advice of the prime minister.
- The qualifications necessary to become the president of India are that a person must be above the age of 35 years and should have all the qualifications necessary to become a member of Lok Sabha.

Election of President & Term of Office

- The election of president of India is done through an electoral college consists of members of both the houses of the parliament and the legislative assemblies and legislative councils of all the states and union territories.
- Normally the president remains in office for a period of five years. He/ she can be elected for a second term also. The president may resign from office by sending a letter of resignation to the vice president, who then would forward the letter to the Lok Sabha speaker. If the president loses the trust of the parliament, can be removed from office through impeachment.

Powers of President

- The president enjoys a variety of powers. They may be grouped as
- Executive Powers
- Legislative Powers
- Judicial Powers, &
- Emergency Powers.

Prime Minister and its Powers

- The party that wins majority of seats in the Lok Sabha is invited by the president to form the government. The leader of this party is appointed as the prime minister.
- On the recommendation of prime minister, the president appoints the council of ministers.
- The prime minister is the link between the Parliament and the president, and between the council of ministers and the president.
- The prime minister advises the president when to summon and dissolve the Parliament.

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- It is the prime minister who advises the president on the appointment of the governors, ambassadors, auditor general, chief election commissioner, judges etc.

Council of Ministers

- The prime minister chooses the council of ministers from among the members of his/her party in the Parliament. The council has three categories of ministers.
- The Cabinet ministers hold the most important portfolios like that of defense, finance, home affairs and foreign affairs. The prime minister and the cabinet ministers are collectively known as the cabinet. Each department is known as portfolio.
- Ministers of state may hold independent charge of a department, but most work under a cabinet minister.

Powers and Collective Responsibility

- Ministers introduce government bills in the parliament.
- The union budget is prepared by the council.
- All laws passed by the parliament are put into effect by the ministers.
- In Indian democracy, the ministers are collectively responsible to the Lok Sabha. When it passes a no-confidence motion, it is not just the prime minister but also all the ministers will have to resign. It is called the principle of collective responsibility.